

24STCV07322 24STCV07322

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-09-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C413%2C09%2F14%2F2026

Source SHA-256: 27fd529ae566066aab7c9617f15bd9f03e1c4fad7023f9432b4419b574a26982

Case Number: 24STCV07322 Hearing Date: September 14, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: September 14, 2026

CASE NUMBER: 24STCV07322

(Related/Consolidated: 26AVCV00316)

CASE NAME: Gloria Lopez v. KMC Landscaping Services, Inc., et al

MOVING PARTY: Plaintiff Gloria Lopez

OPPOSING PARTY: KMC Landscaping Services, Inc.

PROCEEDING: MOTION FOR TRIAL PREFERENCE

RULING SUMMARY: Plaintiff's motion for trial setting preference is denied.

Background

Case

No. 24STCV07322

Plaintiff

Gloria Lopez ("Lopez") filed this action on March 22, 2024, against Defendant KMC Landscaping Services, Inc. ("KMC Landscaping"). The Complaint asserts causes action for: (1) Failure to Pay Wages; (2) Failure to Provide Meal and Rest Period; (3) Failure to Pay Minimum Wage; (4) Failure to Pay Overtime

Wages; (5) Failure to Pay Wages Upon Termination; (6) Failure to Issue Accurate Itemized Wage Statement; (7) Unlawful/Unfair Business Practices; (8) Failure to Reimburse; (9) Wrongful Termination; (10) Retaliation; and (11) Failure to Deliver Personnel File.

On June

25, 2026, the Court related Case Nos. 24STCV07322 and 26AVCV00316 and designated Case No. 24STCV07322 as the lead case; on July 14, 2026, the Court ordered Case Nos. 24STCV07322 and 26AVCV00316 consolidated for all purposes and designated Case No. 24STCV07322 as the lead case.

Case

No. 26AVCV00316

On

March 5, 2026, KMC Landscaping filed a complaint against Lopez and Does 1-10, asserting causes of action for (1) Fraud/Intentional Misrepresentation, (2) Negligent Misrepresentation, (3) Breach of Duty of Loyalty, (4) Unjust Enrichment/Restitution and (5) Conversion.

On June

25, 2026, the Court related Case Nos. 24STCV07322 and 26AVCV00316 and designated Case No. 24STCV07322 as the lead case; on July 14, 2026, the Court ordered Case Nos. 24STCV07322 and 26AVCV00316 consolidated for all purposes and designated Case No. 24STCV07322 as the lead case.

Lopez

moves this Court for an order specially setting the action for trial pursuant to Code of Civil Procedure section 36, subdivision (d) and/or (e). Trial in this matter is set for November 3, 2026. KMC Landscaping and Cohick filed an opposition to the motion.

Motion for trial
preference

LEGAL
STANDARD

Code of

Civil Procedure, subdivision (d) provides as follows:

In its discretion, the court may also grant a motion for preference that is accompanied by clear and convincing medical documentation that concludes that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be served by granting the preference.

Code of Civil Procedure, subdivision (e) provides as follows:

Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interest of justice will be served by granting this preference.

DISCUSSION

On August 6, 2026, Lopez filed an Ex Parte Application for an Order Granting Trial Preference Under Code of Civil Procedure Sections 36(d) and/or 36(e), or in the Alternative Setting a Hearing Date and Order Shortening Time for a Noticed Motion for Preference ("Ex Parte Application"); on August 7, 2026, the Court denied the Ex Parte Application without prejudice to a noticed motion and scheduled a hearing on the motion for September 14, 2026.

Lopez argues that she is entitled to trial preference because she has a substantial interest in this action and because her medical condition is such that a preference is necessary to prevent prejudice to that interest. As the sole plaintiff asserting workplace claims arising from Defendants' alleged misconduct, Plaintiff maintains that no co-party can vindicate her interests if this litigation is delayed. She contends that her recent diagnosis of Grade 3, node-positive breast cancer, coupled with active oncology care at City of Hope, satisfies the standard for preference under Code of Civil Procedure section 36(e). (Code Civ. Proc., § 36(e); Lopez Decl. ¶¶ 3–12; Exs. A–F.)

Further, Plaintiff argues that the course of treatment now before her makes an ordinary trial setting untenable. She faces a staging workup for possible distant

metastasis, endocrine therapy, potential chemotherapy, genetic testing, and surgical decision-making. On these facts, Plaintiff contends that an open-ended or remote trial setting, imposed while she remains in active cancer care, would force her to choose between her medical treatment and meaningful participation in her own trial. She further argues that such delay risks the deterioration of her ability to testify and to assist counsel, thereby prejudicing the very interest section 36(e) is designed to protect.

Next,

Plaintiff argues that the medical documentation attached as Exhibits A through F establishes, by clear and convincing evidence, the seriousness of her illness. That documentation reflects poorly differentiated Grade 3 invasive ductal carcinoma, a clinical stage of cT2N1, axillary nodal involvement, and oncology concern for distant metastatic risk warranting PET/CT imaging and brain MRI. (Exs. A–F.) On this record, Plaintiff contends that the seriousness of her condition and the burden of her ongoing care together compel preference.

Plaintiff

argues in the alternative that, to the extent the Court concludes that the "substantial medical doubt of survival beyond six months" factor under section 36(d) requires an express physician attestation beyond the City of Hope records, Plaintiff does not rest solely on that subdivision. She also seeks preference under section 36(e), and also requests an order shortening time so that a noticed preference motion — accompanied by additional treating-physician declaration — can be heard on an expedited calendar.

Defendants

argue that the motion suffers from a straightforward statutory defect: none of the submitted medical records concludes that Plaintiff's illness raises a substantial medical doubt that she will survive beyond six months. Defendants acknowledge what the records do show. Defendants contend that the evidence of test results and further diagnostic procedures planned, which were offered by Plaintiff, while serious, do not meet the showing required under section 36(d). A risk of distant metastasis, a pending staging workup, and a discussion of potential therapies do not establish, clearly and convincingly, that there is substantial medical doubt of Plaintiff's survival beyond six months. Defendants point out that the submitted documentation contains no prognosis, no life-expectancy opinion, and no treating-physician declaration addressing the statutory standard.

Defendants'

assertion regarding the deficiency of Plaintiff's showing under section 36(d) is correct. Plaintiff did not submit evidence supporting the showing required with her Ex Parte Application and offered no further evidence thereafter.

Plaintiff

also has not provided sufficient grounds to support her request for trial preference under the independent ground pursuant to section 36(e). The trial is set for a date 57 days out. Plaintiff has not shown that an earlier trial date is needed.

Conclusion

Plaintiff's

motion for trial setting preference is denied.

Date: September

14, 2026 _____

William E. Weinberger

Judge, Los Angeles Superior Court